

(noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See the court’s website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

The motion is granted.

20. 9:00 AM CASE NUMBER: C24-03534
CASE NAME: SONIA COLEMAN VS. RESIDENTIAL FIRST CAPITAL
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RESIDENTIAL FIRST CAPITAL
TENTATIVE RULING:

This is defendants’ demurrer to the complaint of Sonia Coleman.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), “all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing.” No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]

Moreover, California courts recognize that a party’s failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See the court’s website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

The demurrer is sustained with twenty days leave to amend.

21. 9:00 AM CASE NUMBER: C25-01135
CASE NAME: SUZETTE ALIDIO VS. KSL ASSOCIATE GROUP, INC.
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: KSL ASSOCIATE GROUP, INC.
TENTATIVE RULING:

Defendant KSL Associate Group, Inc. moves to compel arbitration of plaintiff's individual claims, strike the class claims, and stay proceedings pending the outcome of the arbitration.

Plaintiff has filed a notice of non-opposition to defendant's motion to compel arbitration.

The motion is unopposed. It is, therefore, granted.

22. 9:00 AM CASE NUMBER: C25-01877
CASE NAME: SUZETTE ALIDIO VS. KSL ASSOCIATE GROUP, INC.
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: KSL ASSOCIATE GROUP, INC.
TENTATIVE RULING:

Defendant KSL Associate Group, Inc. moves to compel arbitration of plaintiff's individual claims and stay the representative PAGA proceedings pending the outcome of the arbitration.

Plaintiff has filed a notice of non-opposition to defendant's motion to compel arbitration.

The motion is unopposed. It is, therefore, granted.

23. 9:00 AM CASE NUMBER: N26-0851
CASE NAME: PETITION OF:LVNV ASSISTANCE, LLC
HEARING IN RE: INITIAL PETITION FILED
FILED BY: LVNV ASSISTANCE, LLC
TENTATIVE RULING:

This is an application by LVNV Assistance, LLC to approval of a transfer of structured settlement payment rights.

The application is essentially boilerplate and provides little or no information about the merits of the specific proposed transfer.

There is no proof of service, so the Court does not know who has been notified of this filing.

Most of the information on the forms attached to the petition is redacted. Although the Petition says "A true and correct copy of the proposed Transfer Agreement will be filed subsequently hereto" it has not been filed..